

FARIDI v TDS TRUSTEE SERVICES

25CV48053

PLAINTIFF’S MOTION FOR DETERMINATION OF STANDING AND CORRECTION OF CLERICAL AND ADMINISTRATIVE ERROR

Plaintiff Tariq Jamil Faridi (“Plaintiff”) filed his Complaint arising out of a real property dispute with Defendant Steve Carlson (“Carlson”).

Now before the Court is Plaintiff’s motion for a determination of Plaintiff’s standing and a motion to correct a clerical error pursuant to Code Civil Procedure section 473(b).

Plaintiff filed his First Amended Complaint on July 3, 2025, against Carlson and “TDS Trustee Services” (“TDS.”)¹ In the FAC, Plaintiff alleged that on or about March 7, 2025, TDS recorded a Trustee’s Deed Upon Sale naming Carlson as grantee and thereafter Carlson evicted Plaintiff from the premises. On July 11, 2025, Plaintiff filed a notice of dismissal pursuant to which he dismissed Carlson as a defendant on all causes of action, with prejudice. Carlson is no longer a party to this action.

Plaintiff’s current motions are confusing and meritless. Plaintiff complains that the service of the FAC on Carlson should show service on January 16, 2026, instead of the date shown on the docket (Jan 23, 2026.) The docket, however, clearly shows that the Court filed the proof of service on January 23 but shows that service occurred on January 16, 2026. It is unclear what error Plaintiff is asserting nor how the alleged error has impacted this case.

Plaintiff also asks the Court to determine that he has standing to bring the matter. However, what Plaintiff is ultimately asking the Court to determine is that he has provided sufficient evidence to show that he is entitled to prevail on his claims against Carlson and TDS. First, Plaintiff dismissed Carlson, with prejudice, on his own accord. Plaintiff does not allege that he made a mistake or error in doing so nor does he cite to any legal authority that would allow him to continue to pursue claims against Carlson after dismissing him with prejudice. (See *Kim v. Reins International California, Inc.* (2020) 9 Cal.5th 73, 91 [“dismissal with prejudice is considered a judgment on the merits preventing subsequent litigation between the parties on the dismissed claim.”]) Second, the relief sought by Plaintiff in his motion cannot be determined by a finding of standing alone. Thus, the motion is inappropriate.

¹ TDS asserts that its true name is TD Specialists.

Plaintiff's motion for determination of standing and for remedy of a clerical error are **DENIED**.

The clerk shall provide notice of this ruling to the parties forthwith. Defendant to submit a formal Order complying with Rule 3.1312 in conformity with this Ruling.

HAND v DeMATTEO, et al

25CV48423

DEFENDANT ATTA HOME HEALTHCARE'S DEMURRER TO FIRST AMENDED COMPLAINT

This case involves claims for medical malpractice brought by William Hand ("Plaintiff") against Amanda DeMatteo ("DeMatteo") and Atta Home Healthcare ("Atta.")

Now before the Court is a demurrer brought by Atta. The demurrer is opposed.

I. Background

Atta is a licensed home health agency engaged in the business of providing home health care services to patients at their residences, including wound care, nursing assessments, and wound vacuum-assisted closure ("wound Vac") therapy. (FAC ¶ 2.) DeMatteo is a licensed vocational nurse ("LVN") and at all relevant times was an employee of Atta. (*Id.* ¶¶ 3-4.) Plaintiff has diabetes mellitus ("diabetes") which causes a "materially elevated risk for peripheral vascular insufficiency, impaired wound healing, neuropathy and serious extremity wound infections, including progression to gangrene and limb loss if infection is not timely identified and treated." (*Id.* ¶ 10.) Atta and DeMatteo were aware of Plaintiff's diabetes diagnosis. (*Id.* ¶ 11.)

In or around January 2024, Plaintiff developed a small ulcerative sore on his right foot. (FAC ¶ 12.) The wound was slow to heal and Plaintiff's treating physician prescribed Wound Vac therapy, a treatment modality that uses controlled negative pressure to promote healing of complex or chronic wounds. (*Ibid.*) The standard of care for wound VAC therapy requires that the wound VAC dressing be changed at regular intervals, customarily every three days, to prevent bacterial colonization and infection, permit clinical assessment of wound status, and promote healing. (*Id.* ¶ 13.) Failure to change the dressing at regular intervals is an established risk factor for wound infection and deterioration, particularly in diabetic patients. (*Ibid.*)

Because no local provider was available, Plaintiff initially traveled from his home in Calaveras County to Sacramento every three days for the wound Vac treatment. (FAC ¶ 14.) However, because the travel was difficult on Plaintiff, his care team sought out a local home health agency to provide the service. (*Ibid.*) Plaintiff engaged Atta to provide home health care services to him at his Calaveras County residence. (*Id.* ¶ 15.) The prescribed services included, but were not limited to, taking vital signs; assessing weight; monitoring blood glucose levels; clinically assessing the wound; performing wound VAC dressing changes; photographically documenting the wound; and advising